

Court No. - 39

Case :- WRIT - C No. - 2006 of 2021

Petitioner :- Name Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajay Kumar Dwivedi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondent nos. 1, 2 & 3 and Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 4.

Instant writ petition has been filed with the following relief :

"i. Issue a writ, order or direction in the nature of Certiorari quashing of the impugned Electricity recovery citation dated 09.12.2019 amount Rs.150025 + C.C. +PF issued by the Tehsildar Jasrana, District - Firozabad."

The petitioner is challenging the accuracy of the bill, pursuant to which the recovery citation dated 9.12.2019 has been issued against him.

Learned counsel for the petitioner submits that the petitioner may be extended the facility of instalments for payment of electricity dues.

Learned counsel for the Power Corporation submits that in case the petitioner moves a fresh representation raising grievance with regard to the disputed bills and payment of electricity dues in instalments before the respondent no. 4, the same shall be considered and disposed of sympathetically at the earliest.

Considering the facts and circumstances of the case, the writ petition is disposed of with the liberty to the petitioner to make a fresh representation raising his grievance with regard to the disputed bills and payment of electricity dues in instalments before the respondent no. 4 - Executive Engineer, Vidyut Vitran Khand Jasrana, Dakshinanchal Vidyut Vitran Nigam Ltd., District - Firozabad within two weeks from today, the same shall be considered and disposed of by the respondent no. 4 under clause 6.5 and 6.14 of the U.P. Electricity Supply Code, 2005 within a period of four weeks from the date of making of the representation, after giving due opportunity of hearing to him.

During the pendency of the proceeding before the authority, no coercive steps shall be taken against the petitioner.

In case the petitioner fails to make any representation within the time allowed, the respondent authority will be at liberty to recover the amount in accordance with law.

Order Date :- 1.2.2021

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